

Legislations in Limbo

Without a majority in the Rajya Sabha, the UPA can't have its way

CIVIL NUCLEAR DAMAGES LIABILITY BILL

For: Nuclear energy production is expected to go up from 4,100 MW in 2009 to 40,000 MW in 2035 and this can be achieved only through attracting private players. The nuclear energy business is in a fledgling stage and the Government should keep the liability cap at a minimum to attract new players.

Against: Even if an accident is triggered by wilful negligence on the part of a foreign supplier, all claims would have to be filed against India. The bill is against the polluter-pays principle laid down by the Supreme Court.

Parties: 🇮🇳 Congress and allies 🇯🇵 BJP, Left and Samajwadi Party

WOMEN'S RESERVATION BILL

For: Aimed at reserving one-third of the total available seats for women in national, state and local governments, the bill is expected to bring gender equality in Parliament. Enhanced political participation of women will equip them to fight abuse, discrimination and other social inequities.

Against: The bill will help only the elite classes and family members of politicians, and deny adequate representation to other sections of society. Opposing parties and Muslim groups have called for a quota within the quota for socially backward and Muslim women.

Parties: 🇮🇳 Congress, BJP, NCP, DMK, AIADMK and Left 🇯🇵 BSP, SP and Trinamool

COMMUNAL VIOLENCE BILL

For: The bill ensures enhanced punishment for those involved in fomenting communal clashes; empowers the Centre to intervene and deploy forces to prevent outbreak of communal violence and provide justice and rehabilitation to the victims. State governments can declare certain parts as communally disturbed areas.

Against: The power to declare an area as "communally disturbed" gives the Centre leeway to put a state government under the scanner. The bill gives unbridled authority to the police, raising fears that it would turn against minorities. The bill conceives of communal violence as a 'one time' event rather than as a long-term politically motivated process.

Parties: 🇮🇳 Congress and allies 🇯🇵 BJP and Left

FOREIGN UNIVERSITIES BILL

For: Aimed at easing the entry of foreign universities to India, the move will enhance the quality of higher education. It will stop outflow of \$13 billion Indian students spend on foreign education every year and increase the number of students enrolling for higher education from 12 per cent of the eligible age group to 30 per cent.

Against: State Governments will have no control over the fee structure of the universities. There is no guarantee that a well known university would offer the same course that it offers in its original setting.

Parties: 🇮🇳 Congress and allies 🇯🇵 Left and Samajwadi Party

PENSION FUND REGULATORY AND DEVELOPMENT AUTHORITY (PFRDA) BILL

For: Aimed at having an authority to develop and regulate the New Pension System which seeks to provide old age income security for all, including those in the unorganised sector. The bill will reform design, governance and management structures of the Employee's pension fund and allow foreign players to hold up to 26 per cent stake in Indian pension fund companies. The employees will be given investment choices and equity exposure.

Against: In the system for new government employees, the investment risk is entirely borne by the employee. Any unfavourable event affecting market prices at the time of retirement could lower both pension and fortunes of the employees.

Parties: 🇮🇳 BJP and Congress 🇯🇵 Left and Samajwadi Party

opportunities in higher education and increase the number of students enrolling for higher education from 12 per cent of the eligible age group to 30 per cent. Not just the Left, many leaders within the Congress have started a hush-hush campaign against the Bill, but HRD Minister Kapil Sibal is resolute, "There is no opposition to the Bill. This is something in national interest. It is part of the President's address in Parliament."

The fee for private engineering and medical colleges is fixed by a state-level committee headed by a retired judge and opponents of the Bill claim that it would lead curbing of powers of the state governments. It's not just an emboldened opposition, but the poor legislative planning and the opposition within the party are also giving nightmares to the Government.

When the Rubber (Amendment) Bill was introduced in the Lok Sabha, members were surprised to see Parliamentary Affairs Minister and Minister of State in PMO Prithviraj Chavan placing the Bill for discussion. Both the ministers of the Commerce Ministry—Union Minister Anand Sharma and Minister of State Jyotiraditya Scindia—were away on a foreign trip. "Is there a deadline for the Bill? It can be brought in next time around when any of the ministers are around," said Swaraj. The House was adjourned following Opposition protest. When it reconvened, Parliamentary Affairs Minister P.K. Bansal said that the Bill was being deferred resulting in another loss of face for the Government.

Without a majority in the Rajya Sabha, recalcitrant allies and a united opposition resisting its plans, the Government is trying to flip a few "no" votes. Stalled in the process is a set of pro-market legislations to liberalise the pension, banking and insurance sectors. The Congress' weakness in Parliament is sending out the wrong signal and shows why political consensus still matters on crucial legislations. ■